



CHAPTER xc.

An Act to authorise the acquisition by the South Suburban Gas Company of the undertakings of the Bromley and Crays Gas Company and the West Kent Gas Company to confer further powers on the South Suburban Gas Company and for other purposes,
[7th August 1912.]

WHEREAS the South Suburban Gas Company (in this Act referred to as "the South Suburban Company") were incorporated by the Crystal Palace District Gas Company's Act 1858 by the name of the Crystal Palace District Gas Company:

A.D. 1912.
21 & 22 Vict.
c. cxxix.

And whereas by the South Suburban Gas Act 1904 the name of the South Suburban Company was changed to their present name:

4 Edw. 7.
c. xci.

And whereas by virtue of the said Acts and of other Acts the South Suburban Company are empowered to manufacture and supply gas within an area comprising parts of the counties of London Surrey and Kent:

And whereas in addition to the public Acts to which they are subject the South Suburban Company are subject to the private Acts set out in the First Schedule to this Act so far as such private Acts are not repealed or amended:

And whereas the issued capital of the South Suburban Company consists of sixty thousand pounds preference stock entitled to a fixed preferential dividend of five per centum per annum and six hundred and five thousand pounds ordinary stock entitled to a standard dividend of five per centum per annum subject to increase or decrease in accordance with the decrease or increase below or above their standard price of two shillings

[Price 3s.]

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A.D. 1912. and ninepence per thousand cubic feet in the price for the time being charged by the South Suburban Company for gas supplied by them :

And whereas the South Suburban Company have created and issued five per centum debenture stock to the nominal amount of one hundred and seventeen thousand and fifty-eight pounds and have received upon the issue thereof premiums amounting to thirty-two thousand nine hundred and forty-two pounds :

And whereas the price now charged by the South Suburban Company for gas supplied by them to persons who consume the same by meter is two shillings and threepence per thousand cubic feet :

28 & 29 Vict.
c. cclxxxvi. And whereas the Bromley and Crays Gas Company (in this Act referred to as "the Bromley Company") were incorporated by the Bromley Gas Act 1865 by the name of the Bromley Gas Consumers Company :

8 Edw. 7.
c. xlvii. And whereas by the Bromley and Crays Gas Act 1908 the undertaking of the Crays Gas Company was amalgamated with that of the Bromley Company and the present name of the Bromley Company was conferred upon the amalgamated company :

And whereas by virtue of the said Acts relating to the Bromley Company and of other Acts the Bromley Company are empowered to make and supply gas within an area consisting of such parts of the county of Kent as are specified in Parts I. and II. of the Second Schedule to this Act and pursuant to those Acts the Bromley Company are now supplying gas within the said area :

And whereas the issued capital of the Bromley Company now consists of the following:—

One hundred and nine thousand pounds of "A" ordinary stock ;

One hundred and sixty-five thousand seven hundred pounds of "B" ordinary stock ;

Eighty-two thousand two hundred and seventy-eight pounds of "C" ordinary stock :

And whereas the said "A" ordinary stock and "B" ordinary stock are respectively entitled to standard dividends of five per centum and three and a half per centum per annum subject to increase or decrease in accordance with the decrease

or increase below or above their standard price of four shillings and sixpence per thousand cubic feet in the price for the time being charged by the Bromley Company for gas supplied by them: A.D. 1912.

And whereas the said "C" ordinary stock is entitled to a standard dividend of five per centum per annum subject to decrease to the rate of dividend declared on the said "A" ordinary stock in respect of any half year during any part of which the price charged by the Bromley Company is above the said standard price and to increase to a rate per centum equivalent to five shillings on every one hundred pounds less than the dividend declared on the said "A" ordinary stock in respect of any half year during the whole of which the price charged by the Bromley Company is below such standard price but so that the dividend declared on the said "C" ordinary stock shall not be reduced at any time below five per centum per annum so long as the dividend declared on the said "A" ordinary stock is at or above that rate:

And whereas by the said Bromley and Crays Gas Act 1908 the Bromley Company are empowered to charge for gas supplied by them to persons who consume the same by meter in that part of their area of supply which is comprised within the said Part II. of the Second Schedule to this Act (hereinafter referred to as "the Crays district") a price bearing the following relation to the price to be charged by the Bromley Company for gas similarly supplied by them in the remainder of their limits of supply (which last-mentioned price is hereinafter referred to as "the Bromley price") (that is to say):—

From the first day of August one thousand nine hundred and eight to the twenty-fourth day of June one thousand nine hundred and thirteen not more than sixpence nor less than fourpence in excess of the Bromley price;

From the twenty-fourth day of June one thousand nine hundred and thirteen to the twenty-fourth day of June one thousand nine hundred and eighteen not more than fourpence nor less than threepence in excess of the Bromley price; and

After the said twenty-fourth day of June one thousand nine hundred and eighteen the same price as the Bromley price;

A.D. 1912. subject to the proviso that the price in the Crays district shall not exceed four shillings and sixpence per thousand cubic feet so long as the Bromley price is below four shillings and sixpence per thousand cubic feet and that so long as the Bromley price amounts to or exceeds four shillings and sixpence the price in the Crays district shall be the same as the Bromley price and that so long as the price in the Crays district is more than threepence in excess of the Bromley price the Bromley Company shall not be entitled to pay a higher rate of dividend in respect of their ordinary stocks than the following rates respectively (that is to say):—

On the "A" ordinary stock six per centum per annum;

On the "B" ordinary stock four and a half per centum per annum;

On the "C" ordinary stock five and a half per centum per annum:

And whereas the price now charged by the Bromley Company for gas supplied by them to persons who consume the same by meter is in the Crays district three shillings and sixpence per thousand cubic feet and in the remainder of their limits of supply three shillings per thousand cubic feet:

And whereas the Bromley Company have raised by mortgage of their undertaking the sum of one thousand five hundred pounds bearing interest at the rate of four per centum per annum and have created and issued debenture stock to the nominal amount of fifty-five thousand pounds bearing interest at the rate of three and a half per centum per annum and debenture stock to the nominal amount of fifteen thousand pounds bearing interest at the rate of four per centum per annum:

30 & 31 Vict.
c. lxix.

And whereas the West Kent Gas Company (in this Act referred to as "the West Kent Company") were incorporated by the West Kent Gas Act 1867 and by virtue of that Act and of the West Kent Gas Order 1912 confirmed by the Gas and Water Provisional Orders Confirmation Act 1912 are empowered to make and supply gas within an area consisting of such parts of the said county of Kent as are specified in the Third Schedule to this Act and pursuant to their said Act the West Kent Company are now supplying gas within the said area:

And whereas the issued capital of the West Kent Company now consists of five thousand fully paid up original shares of ten pounds each entitled to a maximum dividend of ten per

centum per annum and two thousand five hundred fully paid up additional shares of ten pounds each entitled to a maximum dividend of seven per centum per annum: A.D. 1912.

And whereas the West Kent Company have not raised any money by mortgage of their undertaking or by the issue of debentures or debenture stock:

And whereas the West Kent Company are under their said Act entitled to charge for gas supplied by them to persons who consume the same by meter any price not exceeding the maximum price of five shillings and sixpence per thousand cubic feet and are at present charging to such persons four shillings and threepence per thousand cubic feet:

And whereas the area within which the West Kent Company are supplying gas as aforesaid adjoins the area within which the Bromley Company are supplying gas as aforesaid and such last-mentioned area adjoins the area within which the South Suburban Company are supplying gas and the Bromley Company and the West Kent Company have respectively agreed to sell their undertakings to the South Suburban Company and the South Suburban Company have agreed to purchase the said respective undertakings upon the terms hereinafter set forth:

And whereas it would be to the advantage of the consumers of gas within the areas supplied by the said companies respectively and it is expedient that the sale and purchase of the said undertakings should be sanctioned as by this Act provided:

And whereas immediately before the passing of this Act the Bromley Company were entitled to raise the sum of one hundred and six thousand six hundred and eighty-two pounds six shillings and sevenpence by the creation and issue of further amounts of "A" ordinary stock or "B" ordinary stock and the West Kent Company were entitled to raise the sum of seventy-five thousand pounds by the creation and issue of further additional shares:

And whereas by the said Crystal Palace District Gas Company's Act 1858 it was provided that the number of directors of the South Suburban Company should be not more than eight but that such number might by vote of any general meeting be reduced to any number being not less than six:

And whereas by a resolution passed at a general meeting of the South Suburban Company held on the nineteenth day of March one thousand eight hundred and sixty-one it was resolved that the number of directors should be reduced to six:

A.D. 1912.

And whereas it is expedient that the provisions contained in this Act with respect to the price to be charged by the South Suburban Company for gas supplied by them in that part of their enlarged area of supply which will comprise the existing limits of supply of the Bromley Company and the existing limits of supply of the West Kent Company should be made:

And whereas it is expedient that the area of supply of the South Suburban Company should be extended as by this Act provided:

And whereas in consequence of the changes which have taken place in recent years in the methods of consumption of gas it has been agreed between the South Suburban Company and the local authorities for certain of the districts within which that Company will be authorised to supply gas after the said sale and purchase shall have taken effect that the gas supplied by the South Suburban Company in such districts shall be tested as to its calorific value instead of as to its illuminating power and it is expedient that effect should be given to the said agreement and that such provisions as are contained in this Act with respect to the said matter should be made and that the extension hereafter of the said provisions to other districts within the said limits with the assent of the local authorities for such other districts should be authorised as by this Act provided:

And whereas it is expedient that such further provisions should be made with respect to the South Suburban Company and their undertaking as are in this Act contained:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the South Suburban Gas Act 1912.

2. This Act is divided into Parts as follows :—

A.D. 1912.

Part I.—Preliminary.

Act divided
into Parts.

Part II.—Acquisition of Bromley and West Kent undertakings.

Part III.—Extension of limits of supply.

Part IV.—Calorific value and testing.

Part V.—Miscellaneous provisions and powers to South Suburban Company.

3. The Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) as amended by the Gasworks Clauses Act 1871 is hereby incorporated with this Act so far as the provisions thereof are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act:

Incorporation of Gas-
works
Clauses
Act 1847.

Provided that—

(a) Section 13 of the said Gasworks Clauses Act 1847 in its application to the South Suburban Company shall be read as if the words “or any premises” were inserted after the words “private building”;

(b) Section 35 of the same Act in its application to the South Suburban Company shall be read as if the words from “in case the whole” down to “have been paid” were omitted therefrom;

(c) Notwithstanding anything contained in the Gasworks Clauses Act 1871 the provisions of sections 128 to 132 (both inclusive) of the Lands Clauses Consolidation Act 1845 shall not apply to any lands acquired by the South Suburban Company by agreement.

4. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

Application
of certain
provisions of
Companies
Clauses Acts.

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts shall so far as the same are respectively applicable and except so far as

A.D. 1912. the same may be varied by or inconsistent with the provisions of this Act apply to any ordinary stock or debenture stock of the South Suburban Company to be issued under the provisions of this Act.

Interpreta-
tion.

5. In this Act the several words and expressions to which meanings are assigned by the Acts partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

The expression “the South Suburban Company” means the South Suburban Gas Company;

The expression “the Bromley Company” means the Bromley and Crays Gas Company;

The expression “the West Kent Company” means the West Kent Gas Company;

The expression “the South Suburban district” means the limits of supply of the South Suburban Company as existing immediately before the passing of this Act;

The expression “the Bromley district” means the several areas specified in Parts I. and II. of the Second Schedule to this Act;

The expression “the West Kent district” means the several areas specified in the Third Schedule to this Act;

The expression “officer” means any person who as regards the Bromley Company on the eleventh day of November one thousand nine hundred and eleven and as regards the West Kent Company on the fifteenth day of December one thousand nine hundred and eleven was or who since those dates respectively but before the passing of this Act has with the consent of the South Suburban Company been appointed manager secretary engineer assistant secretary accountant assistant engineer collector or clerk of the Bromley Company or the West Kent Company (as the case may be);

The expressions “the Bromley undertaking” and “the West Kent undertaking” respectively include subject to the provisions of this Act all rights of making distributing and supplying gas and all other the rights powers authorities and privileges whatsoever of the Bromley Company or the West Kent Company (as the case may be) and all property assets and effects whatsoever and

wheresoever and whether real or personal including cash balances reserve insurance and replacement funds investments and all other interests and rights into and out of the property whether real or personal and obligations and things in action of or belonging to those companies respectively upon or immediately before the date of transfer hereinafter specified and all books accounts deeds writings and documents relating thereto except any agreements entered into or to be entered into between the Bromley Company or the West Kent Company (as the case may be) and the South Suburban Company relating to the transfer to the South Suburban Company of the Bromley undertaking and the West Kent undertaking respectively and any letters and documents relative to the enforcing of any such agreements by the Bromley Company or the West Kent Company (as the case may be) but subject to all contracts debts liabilities and obligations of the said companies respectively which shall be subsisting on the said date;

The expression "the date of transfer" means the date of the passing of this Act;

The expression "limits of supply" means in relation to the South Suburban Company the area within which that company are for the time being authorised to supply gas.

PART II.

ACQUISITION OF BROMLEY AND WEST KENT UNDERTAKINGS.

6.--(1) As on and from the date of transfer the Bromley undertaking and the West Kent undertaking shall by virtue of this Act be transferred to and vested in the South Suburban Company upon and subject to the terms and conditions contained in this Act.

(2) As on and from the date of transfer the Bromley undertaking and the West Kent undertaking shall form part of the undertaking of the South Suburban Company and the Bromley Company and the West Kent Company shall be and are hereby dissolved.

7. Notwithstanding anything contained in this Act so much of the parish of Mottingham as was immediately before the date of transfer being supplied with gas by the South Metropolitan Gas Company shall not be included in the limits of supply of the South Suburban Company.

A.D. 1912.

Transfer to South Suburban Company of Bromley and West Kent undertakings and dissolution of Bromley and West Kent companies.

Part of Mottingham not included in limits of supply of South Suburban Company.

A.D. 1912.

South Suburban Company to issue ordinary stock in substitution for ordinary stock of Bromley Company.

8. As soon as reasonably practicable after the date of transfer the South Suburban Company shall subject to and in accordance with the provisions of this Act issue and pay to those persons who at the date of transfer held ordinary stock of the Bromley Company ordinary stock of the South Suburban Company to be created as hereinafter provided as follows (that is to say):—

To each such holder of "A" ordinary stock of the Bromley Company for each one hundred pounds of such stock held by him the sum of one hundred and eleven pounds eight shillings and eightpence of such ordinary stock of the South Suburban Company;

To each such holder of "B" ordinary stock of the Bromley Company for each one hundred pounds of such stock held by him the sum of eighty-five pounds fourteen shillings and fourpence of such ordinary stock of the South Suburban Company; and

To each such holder of "C" ordinary stock of the Bromley Company for each one hundred pounds of such stock held by him the sum of one hundred and two pounds seventeen shillings and twopence of such ordinary stock of the South Suburban Company;

and so in proportion for any less amount than one hundred pounds of any such ordinary stock of the Bromley Company.

As to mortgage debts of Bromley Company.

9. All moneys due by the Bromley Company at the date of transfer on mortgage of their undertaking (other than money raised by the issue of debenture stock) shall as from that date become and be charged upon the undertaking of the South Suburban Company as if such mortgages had been granted by the South Suburban Company on the dates on which the same were respectively granted by the Bromley Company and the interest on moneys so due shall rank in all respects save as to the rate of such interest *pari passu* with the interest on all debenture stock of the South Suburban Company issued or to be issued under the provisions of the Acts relating to their undertaking.

South Suburban Company to issue debenture stock in substitution for debenture stock of

10. As soon as reasonably practicable after the date of transfer the South Suburban Company shall subject to and in accordance with the provisions of this Act issue to those persons who at the date of transfer held debenture stock of the Bromley Company debenture stock of the South Suburban Company to be created as hereinafter provided as follows (that is to say):—

To each such holder of four per centum debenture stock of the Bromley Company for each one hundred pounds of such debenture stock held by him the sum of one hundred pounds four per centum debenture stock of the South Suburban Company;

A.D. 1912.
Bromley
Company.

To each such holder of three and a half per centum debenture stock of the Bromley Company for each one hundred pounds of such debenture stock held by him the sum of one hundred pounds three and a half per centum debenture stock of the South Suburban Company;

and so in proportion for any less amount than one hundred pounds of such debenture stock of the Bromley Company.

11.—(1) As soon as reasonably practicable after the date of transfer the South Suburban Company shall subject to and in accordance with the provisions of this Act issue to those persons who immediately before that date held original shares or additional shares of the West Kent Company ordinary stock of the South Suburban Company (to be designated and in this Act referred to as “West Kent ordinary stock”) to be created as hereinafter provided as follows (that is to say):—

South Sub-
urban Com-
pany to issue
West Kent
ordinary
stock in sub-
stitution
for shares of
West Kent
Company.

To each such holder of original shares of the West Kent Company for every such share held by him the sum of twenty pounds of West Kent ordinary stock;

To each such holder of additional shares of the West Kent Company for every such share held by him the sum of fourteen pounds of West Kent ordinary stock.

(2) West Kent ordinary stock shall be entitled to a standard dividend of five per centum per annum (in this section referred to as “the standard rate of dividend”) subject to increase or decrease in accordance with the decrease or increase in the price for the time being charged by the South Suburban Company within the South Suburban district in manner following (that is to say):—

(a) In respect of any half year during any part of which the price charged by the South Suburban Company within the South Suburban district shall have been one penny or part of one penny above the standard price of two shillings and ninepence the dividend payable by the South Suburban Company upon West Kent ordinary stock shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of

A.D. 1912.

dividend by one shilling and eightpence on every one hundred pounds of West Kent ordinary stock and so in proportion for any fraction of one hundred pounds :

- (b) In respect of any half year during the whole of which the price charged by the South Suburban Company within the South Suburban district shall have been one penny or more below the price of two shillings and fourpence per thousand cubic feet the dividend payable by the South Suburban Company upon West Kent ordinary stock may in respect of each penny by which the price shall have been reduced below the said price of two shillings and fourpence be increased above the standard rate of dividend by one shilling and eightpence on every one hundred pounds of West Kent ordinary stock and so in proportion for any fraction of one hundred pounds.

Creation of stock and debenture stock of South Suburban Company for purposes of transfer.

12.—(1) On the date of transfer there shall be by virtue of this Act and without any other requisite created such a nominal amount of (i) ordinary stock of the South Suburban Company ranking *pari passu* with the existing ordinary stock of that Company (ii) West Kent ordinary stock (iii) four per centum debenture stock of the South Suburban Company and (iv) three and a half per centum debenture stock of that Company as shall be requisite to give effect to the provisions of this Act with respect to the transfer of the Bromley undertaking and the West Kent undertaking.

(2) The amounts of ordinary stock and of West Kent ordinary stock and of debenture stock of the South Suburban Company to which the holders of ordinary stock or debenture stock of any class of the Bromley Company or of original or additional shares of the West Kent Company respectively become by virtue of this Act entitled shall be vested in such holders as on and from the date of transfer and such holders shall (subject as regards such ordinary stock and West Kent ordinary stock to the provisions of the section of this Act of which the marginal note is "As to fractional parts of one pound") be registered in the books of the South Suburban Company forthwith after the date of transfer as the holders of such amounts respectively.

(3) The ordinary stock West Kent ordinary stock and debenture stock of the South Suburban Company to be created as aforesaid shall rank for dividend or interest as from the

thirtieth day of June one thousand nine hundred and twelve and as from that date the ordinary stock and debenture stock of the Bromley Company and the shares of the West Kent Company shall cease to bear any dividend or interest. A.D. 1912.

13. In every case where under the foregoing provisions of this Act a holder of stock of the Bromley Company or of shares of the West Kent Company would be entitled to be registered as the holder of any fractional part of one pound of ordinary stock or of West Kent ordinary stock of the South Suburban Company or of any amount of such stocks including any such fractional part as aforesaid the South Suburban Company in lieu of registering such holder and issuing to him a certificate as holder of such fractional part of one pound of stock or of an amount of stock including such fractional part shall at the same time as they register such holder in their books pay to him such a sum in cash as shall be equal to the value of such fractional part at the market price on the date of transfer and shall register such holder and issue to him a certificate as holder of the amount (if any) of stock of the South Suburban Company to which he shall be entitled as aforesaid excluding such fractional part and the receipt of such holder for the sum in cash so to be paid as aforesaid shall be a sufficient discharge to the South Suburban Company in respect of such fractional part. The South Suburban Company may either cancel all or any of the stock in respect of which such payment has been made or issue the same to any willing purchaser thereof in amounts of one pound or multiples thereof but not otherwise and any loss or expense which may be incurred in connection with such issue shall be borne by the South Suburban Company. As to fractional parts of one pound.

14.—(1) The ordinary stock of the South Suburban Company created under or by virtue of this Act and to be issued to holders of ordinary stock of the Bromley Company shall rank *pari passu* with and shall in all respects and for all purposes be deemed to form part of and be consolidated with the existing ordinary stock of the South Suburban Company. As to ranking of ordinary stock and West Kent ordinary stock of South Suburban Company created under Act.

(2) The West Kent ordinary stock created under or by virtue of this Act shall subject to the provisions of this Act with respect to the rate of dividend payable thereon rank *pari passu* with the existing ordinary stock of the South Suburban Company.

15. The interest on all debenture stock of the South Suburban Company created under or by virtue of this Act shall rank *pari passu* *inter se* and (in all respects save as to the rate of such interest) *pari passu* with the interest on all debenture stock of that Company issued or to be issued under the provisions of As to interest on debenture stock created under Act.

A.D. 1912. the Acts relating to that Company as if all such respective debenture stocks had been issued by the South Suburban Company under this Act.

Stock and
debenture
stock of
South
Suburban
Company to
be equivalent
to stock and
debenture
stock of
Bromley
Company
and shares of
West Kent
Company.

16. The ordinary stock debenture stock or West Kent ordinary stock of the South Suburban Company of which the holders of stock or debenture stock of the Bromley Company or of shares of the West Kent Company are pursuant to the provisions of this Act respectively registered as the holders and the sums of cash to be paid by the South Suburban Company under this Act in respect of the fractional parts of one pound as aforesaid shall after registration and payment thereof be held in the same right on the same trusts and subject (so far as is consistent with such provisions) to the same powers provisions charges and liabilities as those in upon or to which the stock or debenture stock of the Bromley Company or the shares of the West Kent Company for which such ordinary stock or debenture stock or West Kent ordinary stock of the South Suburban Company or sums of cash are respectively substituted were held or were subject immediately before the date of transfer and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such stock or debenture stock of the Bromley Company or any share of the West Kent Company and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any stock or debenture stock of the Bromley Company or of any share of the West Kent Company are hereby expressly authorised and required to accept any ordinary stock or debenture stock or West Kent ordinary stock of the South Suburban Company of which they are pursuant to the provisions of this Act registered as the holders and any sums of cash paid to them under the provisions of this Act and to hold dispose of or otherwise deal with such ordinary stock debenture stock West Kent ordinary stock or sums of cash in all respects as they might have held disposed of or otherwise dealt with the stock or debenture stock of the Bromley Company or the shares of the West Kent Company for which the same is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act.

Exchange of
certificates.

17. The South Suburban Company shall call in the certificates for stock or debenture stock of the Bromley Company and for shares of the West Kent Company for which ordinary stock or debenture stock or West Kent ordinary stock of the South Suburban Company and sums of cash (if any) are substituted

under the provisions of this Act and shall issue free of charge in exchange for those certificates to the respective holders of the stock or debenture stock of the Bromley Company or of the shares of the West Kent Company represented thereby certificates for ordinary stock or four per centum debenture stock or three and a half per centum debenture stock or West Kent ordinary stock (as the case may be) of the South Suburban Company of the respective amounts and pay to such holders the sums of cash (if any) to which those holders are by virtue of this Act respectively entitled but no holder of stock or debenture stock of the Bromley Company or of shares of the West Kent Company shall be entitled to a new certificate or to receive any such sum of cash as aforesaid until he shall have delivered up to the South Suburban Company to be cancelled the existing certificate for which such certificate and sum of cash (if any) are to be substituted or shall have proved to the reasonable satisfaction of the directors of the South Suburban Company the loss or destruction of such certificate and shall have given to the South Suburban Company an indemnity against any and every claim in respect of such lost or destroyed certificate or the stock or debenture stock or shares represented thereby:

Provided that until the issue of such new certificates the holders of the existing certificates for stock or debenture stock of the Bromley Company or for shares of the West Kent Company shall (according to the amounts of ordinary stock or debenture stock or West Kent ordinary stock of the South Suburban Company to be issued under the provisions of this Act in substitution or part substitution for the stock or debenture stock of the Bromley Company or for the shares of the West Kent Company which they respectively represent) have and possess the same rights and privileges as if such existing certificates were certificates for those respective amounts of ordinary stock debenture stock or West Kent ordinary stock of the South Suburban Company but if any such holder neglect or omit to send or deliver to the South Suburban Company his certificate or certificates for stock or debenture stock of the Bromley Company or for shares of the West Kent Company for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Bromley Company or the West Kent Company as the case may be the South Suburban Company may suspend the payment of any

A.D. 1912. dividends or interest declared or becoming payable upon or in respect of the ordinary stock debenture stock or West Kent ordinary stock so held by him until such certificate or certificates is or are delivered up to the South Suburban Company or is or are proved to the reasonable satisfaction of the directors of that Company to have been lost or destroyed and until such indemnity as aforesaid shall have been given.

Transfers of stock or debenture stock of Bromley Company or of shares of West Kent Company to operate as transfers of stock or debenture stock of South Suburban Company.

18. All transfers or other dispositions of any stock or debenture stock of the Bromley Company or of any shares of the West Kent Company made but not registered prior to the issue by the South Suburban Company to the holder of such stock or debenture stock or shares of the certificate or certificates for the ordinary stock or debenture stock or West Kent ordinary stock to which such holder is entitled under the provisions of this Act shall notwithstanding the provisions of this Act be valid and have due effect given to them respectively as transfers or dispositions of (as the case may be)—

(a) The amounts (being in each case a multiple of one pound) of ordinary stock debenture stock or West Kent ordinary stock of the South Suburban Company which represent the stock or debenture stock of the Bromley Company or the shares of the West Kent Company thereby expressed to be transferred or disposed of and which are substituted for the same by this Act; or

(b) Ordinary stock or West Kent ordinary stock of the South Suburban Company to the amount of the multiple of one pound next below the amount of the ordinary stock or West Kent ordinary stock of that Company which but for the provisions of the section of this Act of which the marginal note is "As to fractional parts of one pound" would have represented the stock of the Bromley Company or the shares of the West Kent Company transferred or disposed of by such transfer or disposition as aforesaid and a sum in cash equal to the value at the market price on the date of transfer of any fractional part of one pound of such ordinary stock or West Kent ordinary stock of the South Suburban Company;

although the instrument of transfer or disposition shall describe the same as stock or debenture stock of the Bromley Company

A.D. 1912.

or as a share or shares of the West Kent Company and the South Suburban Company shall accordingly register the stock in the name of the transferee or person taking under the disposition and pay to such transferee or person the sum (if any) payable in cash and any bequest of or any covenant or provision of any deed or instrument which ought in the circumstances to apply to the stock or debenture stock of the Bromley Company or to the share or shares of the West Kent Company so transferred or disposed of as aforesaid shall be held to apply to (a) an amount of ordinary stock debenture stock or West Kent ordinary stock of the South Suburban Company equal to that which is under the provisions of this Act substituted for such stock or debenture stock of the Bromley Company or share or shares of the West Kent Company and (b) any sum in cash payable under the provisions of this Act in respect of any fractional part of one pound of ordinary stock or West Kent ordinary stock.

19.—(1) The South Suburban Company shall on the date on which they shall pay the dividend on their existing ordinary stock for the half year ending the thirtieth day of June one thousand nine hundred and twelve or on the eighth day of September one thousand nine hundred and twelve (whichever shall be the earlier) pay to the persons who at the date of transfer held ordinary stock of any class of the Bromley Company out of the profits of the Bromley Company available for the purpose on the said thirtieth day of June one thousand nine hundred and twelve half-yearly dividends at the following respective rates per annum (that is to say):—

As to dividend on ordinary stock of Bromley Company and on shares of West Kent Company to 30th June 1912.

To each such holder of "A" ordinary stock of that company six per centum on the amount held by him;

To each such holder of "B" ordinary stock of that company four and a half per centum on the amount held by him;

To each such holder of "C" ordinary stock of that company five and a half per centum on the amount held by him;

subject in each case to deduction of income tax.

(2) The South Suburban Company shall on the like date pay to the persons who at the date of transfer held shares of the West Kent Company out of the profits of the West Kent Company available for that purpose on the said thirtieth day of June one thousand nine hundred and twelve dividends in respect

A.D. 1912. of the half year ending on that date at the following respective rates per annum (that is to say):—

To each such holder of original shares of the West Kent Company ten per centum on the nominal amount of such shares held by him;

To each such holder of additional shares of the West Kent Company seven per centum on the amount paid up on such shares held by him according to the periods during which the same may have been paid;

subject in each case to deduction of income tax.

(3) Provided that the said dividends shall not be paid by the South Suburban Company if the Bromley Company or the West Kent Company (as the case may be) shall before the date of transfer have paid a dividend in respect of such half year.

(4) Separate accounts of the Bromley Company and the West Kent Company respectively shall be made out for the said half year and be audited by the auditors of those companies respectively in the same manner as they would have been audited if this Act had not been passed but as on and from the first day of July one thousand nine hundred and twelve the accounts of the Bromley Company and of the West Kent Company shall be incorporated in and dealt with as part of the accounts of the South Suburban Company.

Bromley and West Kent Company's books to be evidence as to holders of stock debenture stock and shares.

20.—(1) The several persons who immediately before the date of transfer appear on the registers of the Bromley Company to be holders of ordinary stock or debenture stock of any class of that company or on the registers of the West Kent Company to be holders of shares of either class of that company or the respective executors administrators or assigns of such persons shall for the purposes of this Act and subject to the provisions of the section of this Act of which the marginal note is "Transfers of stock or debenture stock of Bromley Company or of shares of West Kent Company to operate as transfers of stock or debenture stock of South Suburban Company" be deemed to be holders of stock or debenture stock of the Bromley Company or of shares of the West Kent Company (as the case may be) and the secretaries of those companies respectively shall on the date of transfer deliver to the South Suburban Company at the principal office of that Company the said registers and on and after the date of transfer the registers of transfers of ordinary stock or debenture stock of the Bromley Company and of shares

of the West Kent Company shall be permanently closed and (except as provided by the last-mentioned section of this Act) no transfer of any stock or debenture stock of the Bromley Company or of any share or shares of the West Kent Company made on or after that date shall as between the South Suburban Company and the party claiming thereunder be of any effect. A.D. 1912.

(2) The issue by the South Suburban Company of certificates for ordinary stock or four per centum debenture stock or three and a half per centum debenture stock or West Kent ordinary stock (as the case may be) of the South Suburban Company as aforesaid together with the payment of the sum in cash representing the market value on the date of transfer of any fractional part of one pound of such ordinary stock or West Kent ordinary stock as provided by the section of this Act of which the marginal note is "As to fractional parts of one pound" to the persons whose names appear by the said registers to be registered holders of stock or debenture stock of the Bromley Company or of shares of the West Kent Company or the respective executors or administrators of such persons or to the persons entitled thereto pursuant to the section of this Act of which the marginal note is "Transfers of stock or debenture stock of Bromley Company or of shares of West Kent Company to operate as transfers of stock or debenture stock of South Suburban Company" shall be a sufficient discharge to the South Suburban Company for all purposes.

21. Subject to the provisions contained in this Act the private Acts specified in the First Schedule to this Act relating to or affecting the South Suburban Company and their undertaking at the date of transfer (except so far as such Acts are repealed or amended) and the provisions of this Act relating to or affecting the South Suburban Company shall apply to the whole undertaking of the South Suburban Company in addition to the public Acts which apply to that undertaking and as from that date that Company may exercise within the South Suburban district and within the Bromley district and within the West Kent district all or any of the powers rights privileges and authorities conferred by the said Acts in relation to the South Suburban District or any part thereof or by this Act.

Provisions of South Suburban Company's Acts to apply to limits as extended.

22. Such of the provisions of the Acts and Orders relating to the Bromley Company and the West Kent Company respectively and their respective undertakings as are not repealed by this or any former Act shall continue in force within the

Certain provisions of Acts and Orders of Bromley and

A.D. 1912.

West Kent
companies
to continue.

Bromley district and the West Kent district respectively and the South Suburban Company within those districts respectively may exercise the powers conferred and shall be subject to the obligations imposed by the said provisions in all respects as if the South Suburban Company had been therein referred to instead of the Bromley Company or the West Kent Company (as the case may be):

Provided that notwithstanding anything in the said provisions with respect to the limits within which the Bromley Company or the West Kent Company may supply gas manufactured by them respectively the South Suburban Company shall be entitled to supply in any part of their limits of supply any gas manufactured by them under or by virtue of the powers conferred by the said provisions:

Provided also that except as expressly provided by the section of this Act of which the marginal note is "For protection of Erith Urban District Council" nothing in this Act shall extend or apply the provisions of section 43 (For protection of local authorities in respect of streets and bridges) of the Bromley and Crays Gas Act 1908 to the execution of any works or the exercise of any powers other than those referred to in the last-mentioned section.

Power to
South Sub-
urban Com-
pany to
exercise
unexercised
powers of
Bromley and
West Kent
companies
of raising
capital.

23.—(1) Notwithstanding the repeal by this Act of any enactment empowering the Bromley Company to raise money by the creation and issue of "A" ordinary stock or "B" ordinary stock or empowering the West Kent Company to raise money by the creation and issue of further additional shares the South Suburban Company may at any time or times after the date of transfer exercise all or any of such powers so far as the same shall not have been exercised at or before the date of transfer.

(2) Any additional capital which the South Suburban Company may create and issue in exercise of the said powers shall be created and issued as ordinary stock of the South Suburban Company and shall rank *pari passu* with and shall in all respects and for all purposes be deemed to form part of and be consolidated with any ordinary stock of the South Suburban Company existing at the time of such creation or issue.

(3) All ordinary stock issued by the South Suburban Company pursuant to this section shall be issued subject to and in accordance with the provisions of the Acts regulating the issue of capital by that Company.

24. If at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing by or against or in favour of the Bromley Company or the West Kent Company the same shall not abate or be discontinued or be in anywise prejudicially affected by reason of the transfer to the South Suburban Company of the Bromley undertaking or the West Kent undertaking or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the South Suburban Company as and when it might have been continued prosecuted and enforced by against or in favour of the Bromley Company or the West Kent Company (as the case may be) if this Act had not been passed but not further or otherwise.

A.D. 1912.

Pending
actions.

25. All agreements contracts conveyances deeds and other instruments affecting the Bromley Company or the West Kent Company and in force at the date of transfer shall (subject as hereinafter provided) as from such date be as binding and of as full force and effect against or in favour of the South Suburban Company (as the case may be) and may be enforced as fully and effectually as if instead of the Bromley Company or the West Kent Company (as the case may be) the South Suburban Company had been a party thereto or bound thereby or entitled to the benefit thereof:

Contracts to
be binding.

Provided that no agreement contract conveyance deed or other instrument made or entered into by the Bromley Company after the eleventh day of November one thousand nine hundred and eleven or by the West Kent Company after the fifteenth day of December one thousand nine hundred and eleven and (in the case of either of the said companies) extending beyond the date of transfer shall be binding on or of any force or effect against or in favour of the South Suburban Company unless made or entered into with the consent in writing of the South Suburban Company.

26. All rents rates and charges and other sums and debts at the date of transfer due and payable or accruing due and payable to the Bromley Company or the West Kent Company shall be payable to and may be collected recovered and enforced by the South Suburban Company in the same manner and with and by the same benefits and processes as those with and by which the Bromley Company or the West Kent Company (as the case may be) might have enforced the same and shall belong to the South Suburban Company for their own benefit.

Collection of
outstanding
debts.

A.D. 1912.

Books &c.
to remain
evidence.

27. All books and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the Bromley Company or the West Kent Company (as the case may be) shall be admitted in evidence in respect of the same or the like matter for or against the South Suburban Company.

Officers of
Bromley and
West Kent
companies
to be ac-
countable for
books &c.

28. All officers and persons who at the date of transfer have in their possession or under their control any books documents papers moneys or effects forming part of the Bromley undertaking or of the West Kent undertaking shall be liable to account for and deliver up the same to the South Suburban Company or to such persons as the South Suburban Company may appoint to receive the same and subject to the same consequences on refusal or neglect as if such officers and persons had been appointed by and become possessed of such books documents papers moneys and effects for the South Suburban Company.

Chairman of
Bromley
Company to
become
director of
South
Suburban
Company.

29.—(1) Alexander Dickson the chairman of the Bromley Company shall (subject to his holding by way of qualification such an amount of stock of the South Suburban Company as represents in accordance with the provisions of this Act an amount of stock of the Bromley Company which would have sufficed to qualify him as a director of the Bromley Company in accordance with the Acts relating to that company) as from the date of transfer become a director of the South Suburban Company and shall (subject to his remaining qualified as aforesaid) continue as such director (if he shall so long live or unless he shall wish to retire from office previously) for a period of two years from the date of transfer.

(2) During the term of office of the said Alexander Dickson as a director of the South Suburban Company the number of directors of that Company shall be temporarily increased to seven. Provided that the South Suburban Company shall not be obliged during the said term to fill any vacancy that may occur in the number of their directors so long as there shall continue to be not less than five of such directors exclusive of the said Alexander Dickson.

(3) During the said term of office there shall be paid to the said Alexander Dickson out of the funds of the South Suburban Company remuneration at the rate of three hundred pounds per annum (payable quarterly on the usual quarter days) so long as he shall continue to hold such office but he

shall not be entitled to participate in any remuneration payable to the directors of the South Suburban Company pursuant to any resolution of that Company for the time being in force which last-mentioned remuneration shall continue to be payable in addition to the remuneration by this section expressly directed to be paid. A.D. 1912.

30.—(1) The South Suburban Company shall within one month after the date of transfer pay to each of the directors of the Bromley Company who shall be living at the date of transfer (including the said Alexander Dickson) a sum equivalent to seven years' purchase of the annual remuneration (with the income tax thereon) of his office calculated upon the average of the three and a half years immediately preceding the date of transfer :

Compensation to directors and auditors of Bromley and West Kent companies.

Provided that if any such director as aforesaid shall have died after the eleventh day of November one thousand nine hundred and eleven and before the date of transfer the remuneration of the surviving directors for the year preceding the date of transfer shall for the purpose of assessing the amount of compensation payable to them respectively under the provisions of this section be calculated as if such death had occurred immediately prior to the year preceding the date of transfer and as if the total remuneration (with the income tax thereon) payable in respect of that year had been divisible among such surviving directors only.

(2) The South Suburban Company shall within one month after the date of transfer pay to each of the directors of the West Kent Company who shall be living at the date of transfer a sum equivalent to seven years' purchase of the amount received by him by way of remuneration of his office during the year immediately preceding the date of transfer.

(3) Each of the auditors of the Bromley Company and of the West Kent Company respectively holding office at the date of transfer shall retire from office as from that date (except that such auditors shall continue to hold their respective offices for the purpose of auditing the accounts of the said companies respectively in accordance with the provisions of the section of this Act of which the marginal note is "As to dividend on " ordinary stock of Bromley Company and on shares of West " Kent Company to 30th June 1912") and the South Suburban Company shall within one month after the date of transfer pay

A.D. 1912. to each of such auditors a sum equivalent to three years' purchase of the remuneration of his office based upon the fees paid during the year immediately preceding the date of transfer.

As to officers
of Bromley
and West
Kent com-
panies.

31.—(1) The South Suburban Company shall subject as is hereinafter provided take over and employ as on and from the date of transfer such of the officers of the Bromley Company and of the West Kent Company respectively who shall be in the employ of either of the said companies at that date as the South Suburban Company may require and as shall be willing to enter the service of the South Suburban Company. The officers so taken over shall continue to hold their respective offices and employments on the same terms and conditions as they held the same under the Bromley Company or the West Kent Company (as the case may be) at the date of transfer until duly determined by the South Suburban Company or by such officers respectively but subject to the same obligations as are imposed upon the officers of the South Suburban Company to join any funds of that Company and shall receive from the South Suburban Company not less than the salaries and agreed emoluments which they shall be receiving from the Bromley Company or the West Kent Company (as the case may be) at the date of transfer.

(2) If the South Suburban Company shall elect not to take over any such officer of the Bromley Company or of the West Kent Company or if any such officer having a length of continuous service with the Bromley Company or the West Kent Company (as the case may be) of fourteen years or upwards shall not be willing to enter the service of the South Suburban Company the South Suburban Company shall pay to such officer by way of compensation for loss of office such an amount (not being less than the amount which under the Acts and rules relating to His Majesty's Civil Service is paid to a person on abolition of office) as may be agreed between the South Suburban Company and such officer or as failing such agreement may be determined by an arbitrator to be agreed upon or in default of agreement appointed on the application of the South Suburban Company or of such officer by the President of the Institute of Chartered Accountants and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such determination. All compensation payable by the South Suburban Company under the provisions of this subsection shall be paid forthwith after the date on which the amount thereof shall have been agreed or determined by arbitration as hereinbefore provided.

(3) Any person appointed without the consent in writing of the South Suburban Company to the permanent staff of the Bromley Company or of the West Kent Company either as an additional member of such staff or to fill up any vacancy therein as regards the Bromley Company between the eleventh day of November one thousand nine hundred and eleven and the date of transfer and as regards the West Kent Company between the fifteenth day of December one thousand nine hundred and eleven and the date of transfer shall not for the purposes of this section be deemed to be an officer of the Bromley Company or of the West Kent Company nor shall any increase of salary remuneration or emoluments (other than any such increase as would have been given to any officer under a grade scale or in the ordinary course of customary increments) granted during the said respective periods by the Bromley Company or the West Kent Company without such consent as aforesaid be taken into account for any purpose of this Act.

A.D. 1912.

32. The South Suburban Company shall continue to pay all pensions granted by the Bromley Company or the West Kent Company as though the South Suburban Company were the Bromley Company or the West Kent Company as the case may be. Provided that if the Bromley Company shall after the eleventh day of November one thousand nine hundred and eleven or the West Kent Company shall after the fifteenth day of December one thousand nine hundred and eleven have granted any new pension or increased any pension granted by them respectively before those respective dates without in each case the consent in writing of the South Suburban Company such new pension or increase in an existing pension shall not be taken into account for the purposes of this section.

South
Suburban
Company to
continue to
pay pensions.

33. The South Suburban Company may by agreement with any person entitled to a pension which the South Suburban Company are by this Act required to continue to pay or with any officer of the Bromley Company or the West Kent Company entitled under the provisions of this Act to any compensation payable by periodical instalments commute any such pension or periodical instalments by payment to the person entitled thereto of a sum in gross.

Power to
commute
pensions
and compen-
sation.

34. As from the date of transfer the reserve funds of the Bromley Company and of the West Kent Company shall be added to and form part of the reserve fund of the South Suburban Company.

As to re-
serve funds
of Bromley
and West
Kent com-
panies.

A.D. 1912.

As to price
of gas in
Bromley
district.

35.—(1) As from the first day of July one thousand nine hundred and twelve until the thirtieth day of June one thousand nine hundred and nineteen the price to be charged by the South Suburban Company for gas supplied by them to persons who consume the same by meter in the several portions hereinafter referred to of the Bromley district shall be a price per thousand cubic feet exceeding by the following respective amounts the price per thousand cubic feet for the time being charged by the South Suburban Company in the South Suburban District (that is to say):—

(a) As regards that part of the Bromley district which is described in Part I. of the Second Schedule to this Act sevenpence:

(b) As regards that part of the Bromley district which is described in Part II. of the said Second Schedule—

(i) Until the thirtieth day of June one thousand nine hundred and eighteen tenpence; and

(ii) From the first day of July one thousand nine hundred and eighteen until the said thirtieth day of June one thousand nine hundred and nineteen sevenpence.

(2) In respect of each period of twelve months commencing on the first day of July one thousand nine hundred and nineteen and on each subsequent first day of July the amount of the difference between the price to be charged by the South Suburban Company as aforesaid in the Bromley district and the price for the time being charged in the South Suburban district shall be reduced by one penny per thousand cubic feet until such difference shall be extinguished and thereafter the price to be charged by the South Suburban Company throughout the Bromley district shall be and continue the same as the price for the time being charged by the South Suburban Company in the South Suburban district.

As to price
of gas in
West Kent
district.

36.—(1) As from the first day of July one thousand one hundred and twelve the price to be charged for gas by the South Suburban Company to persons who consume the same by meter in the West Kent district shall be a price per thousand cubic feet exceeding by the following amounts the price per thousand cubic feet for the time being charged by the South Suburban Company in the South Suburban district (that is to say):—

(i) Until the thirtieth day of June one thousand nine hundred and seventeen one shilling and ninepence : A.D. 1912.

(ii) From the first day of July one thousand nine hundred and seventeen until the thirtieth day of June one thousand nine hundred and twenty-two one shilling and twopence :

(iii) From the first day of July one thousand nine hundred and twenty-two until the thirtieth day of June one thousand nine hundred and twenty-five sevenpence.

(2) In respect of each period of twelve months commencing on the first day of July one thousand nine hundred and twenty-five and on each subsequent first day of July the amount of the difference between the price to be charged by the South Suburban Company as aforesaid in the West Kent district and the price for the time being charged in the South Suburban district shall be reduced by one penny per thousand cubic feet until such difference shall be extinguished and thereafter the price to be charged by the South Suburban Company throughout the West Kent district shall be and continue the same as the price for the time being charged by the South Suburban Company in the South Suburban district.

PART III.

EXTENSION OF LIMITS OF SUPPLY.

37.—(1) From and after the passing of this Act the existing limits of supply of the South Suburban Company shall be extended so as to include the parishes of Cudham Downe and Halstead in the county of Kent.

Extension of
limits of sup-
ply of South
Suburban
Company.

(2) The South Suburban Company shall have and may exercise within the said parishes all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they for the time being have and are subject to within the remainder of their limits of supply.

(3) The price to be charged by the South Suburban Company for gas supplied by them to persons who consume the same by meter in the said parishes shall be as follows (that is to say):—

(a) As regards the parishes of Cudham and Downe the price per thousand cubic feet for the time being

A.D. 1912.

charged by the South Suburban Company in that part of the Bromley district which is described in Part I. of the Second Schedule to this Act:

(b) As regards the parish of Halstead the price per thousand cubic feet for the time being charged by the South Suburban Company in that part of the Bromley district which is described in Part II. of the said Second Schedule.

For protection of South Eastern Railway Company and South Eastern and Chatham Railway Companies Managing Committee.

38. For the protection of the South Eastern Railway Company and the South Eastern and Chatham Railway Companies Managing Committee (hereinafter respectively referred to as "the railway company") the following provisions shall unless otherwise agreed apply and have effect:—

(1) The plan required by section 9 of the Gasworks Clauses Act 1847 shall be accompanied by a section of the proposed works affecting the bridge over the railway of the railway company and the approaches to the said bridge hereinafter mentioned and shall be delivered to the chief engineer of the railway company by the South Suburban Company not less than fourteen days before they commence to open or break up the said bridge and approaches for the purpose of executing the works:

(2) All gas mains pipes and other works of the South Suburban Company laid or executed upon or attached to the bridge in the parish of Halstead carrying the public road leading from Chelsfield across the railway of the railway company immediately to the east of the Knockholt Station or in the approaches to the said bridge shall be at all times maintained in good repair by the South Suburban Company and in default of their being so maintained the railway company may from time to time by notice in writing signed by their engineer and delivered at the principal office for the time being of the South Suburban Company require the South Suburban Company to forthwith put into good repair any such gas main pipe or other work as aforesaid which may be in such a state of disrepair as to cause risk of injury to the property of the railway company and if the South Suburban Company for seven days after the receipt of such notice refuse or neglect to proceed

A.D. 1912.

with the repair of the same and do not dispute their liability under this subsection to repair the same the railway company may without any further notice to the South Suburban Company repair the same and all expenses reasonably incurred by them in or about such repair shall be repaid to them by the South Suburban Company Provided that in case of accidents happening or immediate danger being apprehended to the railway works by reason of any such gas main pipe or other work as aforesaid being out of repair the railway company may without giving such notice as aforesaid make such repairs as may be immediately necessary and the expenses of the same shall be repaid as hereinbefore provided:

(3) If the railway company in widening altering reconstructing or maintaining their railways in the said parish or the works connected therewith reasonably and properly incur any additional expense by reason of the existence of any gas mains pipes or other works of the South Suburban Company laid or executed upon the said bridge or in the said approaches under the powers of this Act such additional expense shall be paid by the South Suburban Company:

(4) The South Suburban Company shall bear and on demand pay to the railway company all reasonable costs of the superintendence by them of the execution or repair of any works of the South Suburban Company affecting the said bridge or approaches so far if at all as such costs may be in case of difference determined by the arbitrator to have been necessary:

(5) Any difference which may arise between the railway company and the South Suburban Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers.

39. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall (unless otherwise agreed in writing between the

For protection of
Metropolitan
Water
Board.

A.D. 1912. board on the one hand and the South Suburban Company on the other hand) have effect (that is to say):—

Before the South Suburban Company shall commence to lay or place any mains or pipes other than service pipes in any street or road in the parishes of Cudham Downe and Halstead or any of them as regards which the board shall have given notice in writing to the South Suburban Company of the existence therein of mains pipes culverts valves hydrants syphons plugs or other works (in this section referred to as “apparatus”) of the board they shall deliver to the board for the approval of the engineer of the board plans and sections showing the position in which it is proposed to lay or place such mains or pipes and if such engineer shall signify his approval of such plans and sections or shall fail for a period of fourteen days after such submission to signify his approval or disapproval thereof the work shall be carried out by the South Suburban Company in accordance with such plans and sections Provided that if such engineer within the said period shall have expressed his disapproval of the said plans and sections the South Suburban Company shall not commence to lay or place such mains or pipes unless and until plans and sections showing the position in which such mains or pipes are to be laid shall have been settled by an engineer to be agreed upon or failing such agreement to be appointed upon the application of either of the parties in difference by the President of the Institution of Civil Engineers.

For protection of Kent County Council.

40. For the protection of the Kent County Council (in this section referred to as “the county council”) the following provisions shall unless otherwise agreed in writing between the South Suburban Company and the county council have effect in relation to the laying of pipes by the South Suburban Company in or upon any main road or county bridge repairable by the county council in the parishes specified in the section of this Act of which the marginal note is “Extension of limits of supply of South Suburban Company” :—

- (1) All pipes to be laid in along or across the carriageway of any such road or bridge shall be laid in such position as the county council in writing under the hand of their surveyor may reasonably direct and at such depth as to leave not less than two feet six

inches of cover between the surface of such carriage-way and the top of the barrel of the pipe: A.D. 1912.

- (2) The South Suburban Company shall not open a greater continuous length of any such road than one hundred yards nor shall they leave a less space than fifty yards between any two consecutive openings and they shall not open a greater length than fifty yards at any place where such opening would leave insufficient space for the passage of two vehicles abreast:
- (3) In the application for the purposes of this section of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by section 8 of that Act shall (except in cases of emergency in which cases the earliest possible notice shall be given) be not less than seven days instead of three days and the plan required by section 9 of the said Act shall be delivered by the South Suburban Company to the county council or the said surveyor not less than seven days before they commence to open or break up any such road or interfere with any such bridge as aforesaid:
- (4) Nothing in this Act contained shall interfere with the right of the county council to alter the line or level of or improve in any manner they think fit any such road in or along which any pipes of the South Suburban Company shall have been laid and the South Suburban Company shall on the expiration of fourteen days after receiving notice in writing under the hand of the clerk or surveyor of the county council so to do proceed to alter the position of any such pipes in the manner and to the extent prescribed by such notice or in case of difference determined by arbitration in the manner hereinafter prescribed and the expenses of any such alteration shall be paid to the South Suburban Company by the county council:
- (5) All works of the South Suburban Company so far as they affect any such road or bridge as aforesaid shall be so executed by the South Suburban Company as not so far as reasonably practicable in any way to

A.D. 1912. impede or interfere with the traffic on such road or bridge or the approaches thereto:

(6) If any difference arise at any time between the county council and the South Suburban Company under this section such difference shall be settled by arbitration by an engineer to be agreed on between the county council and the South Suburban Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

PART IV.

CALORIFIC VALUE AND TESTING.

Definition of expressions used in this Part of Act.

41. In this Part of this Act—

The expression “the specified districts” means such parts of the metropolitan boroughs of Lewisham Camberwell and Lambeth and of the county borough of Croydon as are within the South Suburban District the borough of Bromley and the urban districts of Bexley Erith and Penge;

The expression “the controlling authority” means in relation to the specified districts respectively the local authority for that district for the purposes of the Gas and Water Works Facilities Act 1870.

South Suburban Company to provide apparatus for testing calorific value.

42. Within six months from the date of transfer the South Suburban Company shall provide at each of the prescribed testing places within the specified districts apparatus for testing the calorific value of the gas supplied by them at such testing place similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific value of the gas supplied by the companies referred to in the London Gas Act 1905 Provided that where any apparatus for testing the calorific value of the gas supplied by the South Suburban Company shall have been provided at any such testing place by any local authority under the provisions of section 5 (As to testing for calorific power sulphur impurities and illuminating power with flat flame and incandescent burners) of the South Suburban Gas Act 1906 and the apparatus so provided is similar to the apparatus for the time being prescribed by the metropolitan gas referees as aforesaid the South Suburban Company

shall not be required (except for any necessary renewal or replacement) to provide at that testing place any apparatus for such testing but the apparatus so provided shall be deemed for the purposes of this Act to have been provided by the South Suburban Company. A.D. 1912.

43.—(1) As from the date on which the South Suburban Company shall have completed the provision of the apparatus referred to in the section of this Act of which the marginal note is “South Suburban Company to provide apparatus for testing calorific value” at all the prescribed testing places within the specified districts (except as provided by the said section)—

Substituting
standard
calorific
value for
prescribed
illuminating
power.

(a) Every enactment in force immediately before that date whereby or by virtue whereof the gas supplied by the South Suburban Company is required to be of a prescribed illuminating power shall in relation to the specified districts cease to apply with respect to such gas:

(b) The South Suburban Company shall cease to be under any liability or obligation to provide or maintain at any testing place within the specified districts any apparatus for testing the illuminating power of such gas but shall be at liberty to remove from all or any of the said testing places any such apparatus which they have provided thereat:

(c) The South Suburban Company shall not be liable to any penalty in respect of any deficiency in the illuminating power of the gas supplied by the South Suburban Company within the specified districts:

(d) The gas supplied by the South Suburban Company within the specified districts shall when tested in the mode and under the conditions for the time being prescribed by the metropolitan gas referees for testing the calorific value of gas be of a standard calorific value of five hundred and forty British thermal units gross per cubic foot (the expression “British thermal units” being used in this Part of this Act as meaning British thermal units gross per cubic foot) Provided that the South Suburban Company shall not be liable to any penalty or proceedings for or

A.D. 1912.

in respect of deficient calorific value of the gas so supplied by them except in accordance with the provisions hereinafter contained :

(e) The section of this Act of which the marginal note is "No penalty in case of unavoidable cause" shall in relation to the specified districts be read and have effect as if the words "defect of illuminating power" were omitted therefrom :

(f) The provisions contained in the sections of this Act of which the marginal notes are respectively "Provisions as to testing for calorific value" and "Penalties for deficient calorific value" shall have effect :

(g) Section xl (Quality of gas to be supplied by Company) section xli (Company to erect a meter to test purity of their gas) section xlii (Power of justices on requisition to authorise testing of gas) and section xliii (Cost of experiment) of the Crystal Palace District Gas Company's Act 1858 and subsections (1) (A) and (2) of section 3 (Illuminating power and burner for testing gas) of the South Suburban Gas Act 1906 shall be and the same are hereby repealed so far as regards the specified districts.

(2) Nothing in this Act shall alter vary or affect the provisions of section 5 of the South Suburban Gas Act 1906 and as from the date hereinbefore referred to there shall be deemed to be added to the testings which under the provisions of that section may be made at any testing place within the specified districts a testing for the purpose of ascertaining the illuminating power of the gas supplied by the South Suburban Company at such testing place by means of the burner prescribed by section 3 of the said Act of 1906 and used in the manner therein prescribed.

Provisions as
to testing
for calorific
value.

44. The following provisions shall apply with respect to the testing for calorific value of the gas supplied by the South Suburban Company within the specified districts :—

(1) The gas examiner of the controlling authority may at any testing place at which that authority is authorised to test the gas supplied by the South Suburban Company test at any hour of the day or night the calorific value of such gas at that testing place :

- (2) The South Suburban Company may if they think fit on each occasion of the testing of gas under the provisions of this section be represented by some officer (who shall not interfere in the testing) and the gas examiner shall inform the South Suburban Company on what day and at what time it is proposed to make any such testing so as to give reasonably sufficient notice to enable them to be represented as aforesaid : A.D. 1912.
- (3) Not more than one testing for calorific value shall be made at any testing place on any one day (reckoned from midnight to midnight) except that in the event of the calorific value being on any testing ascertained to be below four hundred and forty-seven British thermal units a second testing shall be made on the same day but at an interval of not less than one hour from the time of making the first testing at that testing place and the average of the two testings shall be deemed to be the calorific value of the gas at such testing place on that day :
- (4) If on any one day the gas supplied by the South Suburban Company at any such testing place is of less calorific value than four hundred and seventy-five British thermal units to an extent not exceeding twenty-eight British thermal units the gas examiner shall make at such testing place a testing of the calorific value of such gas on each of the two following days and the average of the three testings so made shall be deemed to represent the calorific value of the gas on such one day at such testing place :
- (5) The gas examiner shall forthwith give notice to the South Suburban Company at their office of any defect of calorific value ascertained by him on any testing made under this section :
- (6) Section 33 of the Gasworks Clauses Act 1871 in its application to the South Suburban Company in relation to the specified districts shall be construed as if calorific value were therein referred to in lieu of illuminating power.

A.D. 1912.

Penalties for
deficient
calorific
value.

45. Where the calorific value on any day of the gas supplied by the South Suburban Company within the specified districts is less than four hundred and seventy-five British thermal units they shall be liable to the following penalties in respect of such deficiency (that is to say):—

Where the deficiency does not exceed fourteen British thermal units two pounds;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds;

For each complete twenty-eight British thermal units of defective value a sum not exceeding ten pounds:

Provided that the South Suburban Company shall not be liable to any penalty in any case in respect to which it is proved before the justices that the defect of calorific value was occasioned by unavoidable cause or accident.

Power to
Board of
Trade to
extend this
Part of Act
to other
districts.

46. The Board of Trade may at any time on the joint application in writing of the South Suburban Company and the local authority for any district within the limits of supply of the South Suburban Company (not being one of the specified districts) by order under the hand of the secretary or an assistant secretary of that Board direct that the provisions of this Part of this Act shall (subject to the modifications hereinafter referred to) apply and have effect within the district of that local authority and as from the date on which any such order shall come into force the said provisions shall apply and have effect accordingly as if the district to which such order relates had been one of the specified districts and as if the local authority for that district were in relation thereto the controlling authority for the purposes of this Part of this Act:

Provided that for the purposes of any order made under the provisions of this section the sections of this Act of which the marginal notes are respectively "South Suburban Company to provide apparatus for testing calorific value" and "Substituting standard calorific value for prescribed illuminating power" shall be construed as if (a) the date on which such order shall come into force had been substituted in the first mentioned section for the date of transfer and (b) the date on which the South Suburban Company shall have completed the provision of the apparatus referred to in the said first mentioned

section at the prescribed testing place or testing places within the district to which such order relates had been substituted for the date referred to in the secondly mentioned section: A.D. 1912.

Provided also that this section shall not apply to the urban district of Beckenham.

PART V.

MISCELLANEOUS PROVISIONS AND POWERS TO SOUTH SUBURBAN COMPANY.

47. The provisions of section 43 (For protection of local authorities in respect of streets and bridges) of the Bromley and Crays Gas Act 1908 shall extend and apply to the exercise by the South Suburban Company by virtue of this Act of any powers of breaking up streets and bridges repairable by the Erith Urban District Council as if that council were a local authority within the meaning of the said section. For protection of Erith Urban District Council.

48. The Erith Urban District Council may to the reasonable satisfaction of the South Suburban Company provide at the offices of the said council a proper and sufficient room for a testing place and the South Suburban Company shall at their own expense provide and fix therein all the necessary apparatus and machinery for testing the purity illuminating power calorific value and pressure of the gas supplied by the South Suburban Company in accordance with the provisions of the Acts set out in the First Schedule to this Act and this Act and such testing place shall be deemed to be a testing place required to be provided in conformity with the provisions of the Gasworks Clauses Act 1871. As to testing place at Erith.

49. Notwithstanding the repeal by this Act of section 57 (Company to erect meter to test quality of gas) of the West Kent Gas Act 1867 the South Suburban Company shall until the testing place referred to in the section of this Act of which the marginal note is "As to testing place at Erith" shall have been provided and equipped ready for use as by that section provided maintain for the purpose of testing in accordance with the provisions of the Acts relating to the South Suburban Company the gas supplied by that Company the testing place provided by the West Kent Company pursuant to the said section 57 at their works at Erith. Testing place at Erith to be retained temporarily.

A.D. 1912.

Extending
section 3 of
South
Suburban
Gas Act
1905 to fit-
tings sup-
plied under
hire purchase
agreements.

50. The provisions of section 3 (Fittings not to be subject to distress and engines &c. though fixed to premises to remain property of Company) of the South Suburban Gas Act 1905 shall extend and apply to engines motors dynamos fittings apparatus and appliances supplied under statutory powers by the South Suburban Company under any hire purchase agreement. Provided that the South Suburban Company shall only be entitled to the benefit of the said provisions in relation to any such agreement as aforesaid so long as any instalment of the purchase money payable thereunder shall remain unpaid.

Power to
lay pipes in
private
streets.

51. The South Suburban Company may on the application of the owner or occupier of any premises within their limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Acts 1847 and 1871 shall apply as if the street were a street within the meaning of those Acts.

As to private
streets.

52. The local authority of the borough or district within which any street not repairable by the inhabitants at large is situate shall be deemed in addition to any other persons to be persons having the control or management of such street for the purposes of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

As to laying
of future
mains.

53. From and after the passing of this Act all mains laid by the South Suburban Company in any street shall be laid at a depth of not less than two feet unless otherwise agreed between the local authority concerned and the South Suburban Company.

For the purposes of this section the expression "street" shall not include a bridge.

Pressure.

54.—(1) All gas supplied by the South Suburban Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at any testing place or at any public lamp as and when he thinks fit test the pressure at

which the gas is supplied The South Suburban Company shall afford to the examiner all reasonable facilities for making the test. A.D. 1912.

(3) Section 26 (Pressure of gas) of the Crystal Palace District Gas Act 1893 is hereby repealed.

55. The South Suburban Company with the consent of the owner and occupier of any buildings may lay any pipe branch or other necessary apparatus from any main or branch pipe into through or against such building for the purpose of lighting it and may with the like consent provide and set up any apparatus necessary for securing to such building a proper and complete supply of gas and for measuring and ascertaining the extent of such supply and may from time to time with the like consent repair replace alter or discontinue and remove any such pipe branch or apparatus. Power to lay pipes against buildings.

56.—(1) The South Suburban Company may purchase and may supply sell and let but shall not manufacture stoves ranges engines dynamos and meters pipes and fittings and apparatus for the automatic supply of and payment for gas and apparatus for lighting heating cooking ventilating or motive power or for any other purpose for which gas may be utilised and may fix remove or alter the same or any other fittings or apparatus (all which things fittings and apparatus are hereinafter referred to as and included in the expression “fittings”) and do any work or services in connection therewith and may supply gas for the aforesaid purposes or by the aforesaid means or any of them and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the South Suburban Company and the persons to or for whom the fittings are sold let fixed repaired or removed. Power to supply gas apparatus &c. for heating motive and other purposes.

(2) Section 2 (Power to supply gas fittings engines and other apparatus) of the Crystal Palace District Gas Act 1879 is hereby repealed.

57. If a person requiring a supply of gas from the South Suburban Company has previously quitted premises at which gas was supplied to him by that Company or by the Bromley Company or the West Kent Company without his paying all gas or meter rent due from him in respect of the said premises the South Suburban Company may refuse to furnish to him a supply of gas until he pays the same. Power to refuse to supply persons in debt for other premises.

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Gas consumers to give notice to South Suburban Company before removing.

58. At least twenty-four hours' notice shall be given to the South Suburban Company by every gas consumer either personally at the office of the South Suburban Company or in writing before he shall quit any premises supplied with gas by meter by the South Suburban Company and in default of such notice the consumer so quitting shall be liable to pay to the South Suburban Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the South Suburban Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed on every demand note for gas charges payable to the South Suburban Company.

Notice to discontinue supply of gas.

59. A notice to the South Suburban Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the South Suburban Company or be given by the consumer personally at the office of the South Suburban Company.

South Suburban Company may contract with local authority &c. for supply in bulk.

60. The South Suburban Company may contract with any local authority company or persons supplying gas under parliamentary powers in any district adjacent to the South Suburban Company's limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the South Suburban Company to lay any mains or interfere with any street beyond their limits of supply.

South Suburban Company may acquire patent rights.

61. The South Suburban Company may acquire hold and use patent rights not being exclusive rights or licences for the use of inventions in relation to the manufacture of gas or in relation to the distribution or supply of gas and also in relation to the manufacture conversion or utilisation of residual products and materials arising in or resulting from the manufacture of gas.

Provisions as to charges &c. and conditions in respect of gas supplied for power.

62. Notwithstanding anything contained in this or any other Act relating to the South Suburban Company the provisions of sections 11 12 24 to 34 36 and 37 of the Gasworks Clauses Act 1871 shall not apply to the South Suburban Company in

respect of gas supplied by them for utilisation for power (hereinafter called "power gas") and the provisions of the said Acts with respect to the illuminating power calorific value pressure or purity of gas supplied by the South Suburban Company and the testing thereof or with respect to the price of gas shall not be applicable in respect of power gas supplied by the South Suburban Company or to the South Suburban Company in respect of power gas and the South Suburban Company may charge in respect of power gas supplied to the occupier of any premises within the limits of supply of the South Suburban Company such sums as may be agreed between the South Suburban Company and such occupier as aforesaid.

A.D. 1912.

63.—(1) It shall not be lawful for the South Suburban Company at any time to supply power gas which does not possess a distinctive and readily perceptible smell.

Conditions
as to quality
of power gas
supplied.

(2) For every contravention of this section the South Suburban Company shall be liable on summary conviction to a fine not exceeding fifty pounds.

(3) It shall be the duty of the inspectors of factories and the inspectors of mines to enforce the provisions of this section within their district so far as respects factories workshops and mines inspected by them respectively and such inspectors shall for this purpose have all powers and authorities conferred by section 119 of the Factory and Workshop Act 1901 and by section 98 of the Coal Mines Act 1911 and section 17 of the Metalliferous Mines Regulation Act 1872 respectively :

Provided that no proceedings shall be taken against the South Suburban Company by any such inspector in respect of any contravention of the provisions of this section discovered by him on any inspection of a factory workshop or mine unless he shall have given notice in writing to the South Suburban Company at their principal office of such contravention and of the nature of the contravention as soon as possible after he discovers the same.

64. The South Suburban Company shall not supply power gas for the purpose of illumination and no power gas supplied by the South Suburban Company shall be used for that purpose.

Power gas
not to be
supplied for
illumination.

If any person supplied by the South Suburban Company with power gas shall use the same for the purposes of illumination the South Suburban Company shall forthwith upon becoming aware thereof discontinue the supply.

A.D. 1912.

If the South Suburban Company act in contravention of the provisions of this section they shall for every such offence be liable to a penalty not exceeding twenty pounds and to a penalty not exceeding five pounds for each day during which such offence shall continue after conviction thereof.

Home Secretary may make regulations as to supply of power gas.

65.—(1) The Secretary of State for the Home Department may at any time either before or after the South Suburban Company shall have commenced to give a supply of power gas to consumers (after holding such inquiries as he may think fit and considering any representations made to him by the South Suburban Company) make or impose in the interests of safety to persons regulations terms and conditions with respect to such supply.

(2) The South Suburban Company shall not under the powers of this Act supply or continue to supply power gas otherwise than in accordance with any regulations and upon and subject to any terms and conditions which shall have been so made or imposed and shall for the time being be in force. Provided that if in the opinion of the South Suburban Company compliance with any such regulations terms and conditions would render the supply or continued supply of power gas by them unremunerative or impracticable it shall be lawful for the South Suburban Company upon giving to all consumers of power gas supplied by them not less than three months' notice of their intention so to do to discontinue such supply and in that event the South Suburban Company shall not be under any obligation to supply or continue to supply power gas to any person.

(3) For every contravention of this section the South Suburban Company shall be liable on summary conviction to a fine not exceeding fifty pounds.

(4) For the purpose of enforcing this section or for the purpose of any inquiry by the said Secretary of State thereunder inspectors of factories and inspectors of mines shall have such and the like powers and authorities as are conferred by the enactments referred to in the section of this Act the marginal note whereof is "Conditions as to quality of power gas supplied."

Provision as to general Acts relating to power gas.

66. Nothing in this Act contained shall exempt the South Suburban Company from the provisions of any general Act relating to the manufacture or supply of power gas passed before or after the passing of this Act or from any regulations which may be made under any such general Act.

67. After the passing of this Act any person not being a retiring director of the South Suburban Company wishing to be elected a director of that Company shall not be eligible for election unless notice be given to the secretary or left at the principal office of the South Suburban Company ten days at the least before the day of election that such person will be proposed for election as a director and the secretary shall during such ten days and on the day for election fix a copy of every such notice so delivered in some conspicuous place in such office.

A.D. 1912.
Notice to be given of persons seeking to be elected directors.

68. The South Suburban Company may purchase or take on lease dwelling-houses for persons in their employ and may erect fit up maintain and let houses cottages and buildings for such persons upon any lands for the time being belonging or leased to the South Suburban Company.

Dwelling-houses for workmen.

69. No penalty shall be incurred by the South Suburban Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the South Suburban Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the South Suburban Company.

No penalty in case of unavoidable cause.

70. Section 15 (Profits in excess of authorised rates of dividend) of the Crystal Palace District Gas Act 1893 shall be read and have effect as if the amount required to pay one year's dividend at the authorised rate on the ordinary stocks for the time being of the South Suburban Company had been referred to in the proviso thereto instead of the sum of twenty thousand pounds.

Amending section 15 of Crystal Palace District Gas Act 1893.

71.—(1) The directors of the South Suburban Company may if they think fit in any year appropriate out of the revenue of the South Suburban Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the South Suburban Company including premiums to a fund to be called "the special purposes fund."

Power to create a special purposes fund.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the South Suburban Company or

A.D. 1912. appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the South Suburban Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the South Suburban Company to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance funds of the South Suburban Company and of the Bromley Company respectively at the passing of this Act shall be credited to the special purposes fund and section 14 of the Crystal Palace District Gas Act 1893 is hereby repealed.

(7) For the purposes of this section the paid-up capital of the South Suburban Company shall be deemed to consist of the following (that is to say):—

(i) The sum of seven hundred and ninety-seven thousand two hundred and one pounds:

(ii) All paid-up capital (including premiums) from time to time raised by the South Suburban Company after the passing of this Act but not including any of the ordinary stock or West Kent ordinary stock created by virtue of this Act as mentioned in the section of this Act of which the marginal note is "Creation of stock" and debenture stock of South Suburban Company for "purposes of transfer."

72. For the purposes of the Crystal Palace District Gas Act 1893 (in this section referred to as "the Act of 1893") the paid-up capital of the South Suburban Company shall be deemed to consist of the following (that is to say):—

A.D. 1912.
Definition of
paid-up
capital of
South
Suburban
Company.

- (i) The amount of capital of the Crystal Palace District Gas Company as converted under the Act of 1893:
- (ii) All paid-up capital (including premiums) raised by the said Crystal Palace District Gas Company or the South Suburban Company after the passing of the Act of 1893 and before the passing of this Act:
- (iii) The amount of ordinary stock and of West Kent ordinary stock to be issued under the provisions of this Act to the holders of ordinary stock of the Bromley Company and of shares of the West Kent Company:
- (iv) All paid-up capital (including premiums) from time to time raised by the South Suburban Company after the passing of this Act.

73. The South Suburban Company (notwithstanding anything in any Act relating to their undertaking or any part thereof) shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products or for the construction maintenance and repair of their gasworks plant and buildings or for the maintenance or repair of gas fittings.

As to pur-
chase of
materials by
South
Suburban
Company.

74. In addition to the powers which the directors of the South Suburban Company may exercise under the Companies Clauses Acts 1845 to 1889 or otherwise they may from time to time determine the remuneration of the secretary of that Company.

Power for
directors to
determine
remuneration
of secretary.

75. The Acts and Order named in the Fourth Schedule to this Act shall as from the date of transfer be and the same are hereby repealed to the extent mentioned in the second column of that schedule.

Repeal of
Acts.

76. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the South Suburban Company.

Costs of Act.

A.D. 1912. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

The Crystal Palace District Gas Company's Act 1858.
The Crystal Palace District Gas Company's Amendment Act 1865.
The Crystal Palace District Gas Act 1873.
The Crystal Palace District Gas Act 1879.
The Crystal Palace District Gas Act 1893.
The South Suburban Gas Act 1904.
The South Suburban Gas Act 1905.
The South Suburban Gas Act 1906.

THE SECOND SCHEDULE.

DESCRIPTION OF BROMLEY DISTRICT.

PART I.

The parishes townships hamlets or places of Bromley Mottingham Keston Hayes West Wickham and so much of the eastern portion of the parish of Beckenham as is separated from the remainder of that parish by the public road leading from Bromley by the Shortlands Station of the London Chatham and Dover Railway Company to Pythell Green and thence to Hayes together with the said road and all land lying within three hundred feet thereof and such portions of the parishes of Chislehurst Orpington and Farnborough as were immediately before the first day of August one thousand nine hundred and eight being supplied with gas by the Bromley Gas Consumers Company.

PART II.

The parishes of Saint Mary Cray Saint Paul's Cray North Cray Foots Cray and Chelsfield and such portions of the parishes of Chislehurst Orpington and Farnborough as were not immediately before the first day of August one thousand nine hundred and eight being supplied with gas by the Bromley Gas Consumers Company.

THE THIRD SCHEDULE.

A.D. 1912.

DESCRIPTION OF WEST KENT DISTRICT.

The parishes of Bexley Crayford Erith and East Wickham.

THE FOURTH SCHEDULE.

Acts repealed.	Extent of the Repeal.
The Bromley Gas Act 1865.	The whole Act (so far as not hitherto repealed) except sections 31 and 48.
The Crays Gas Act 1865.	The whole Act (so far as not hitherto repealed) except sections 36 and 37 and the schedule to such Act.
The Bromley Gas Act 1879.	The whole Act (so far as not hitherto repealed) except sections 25 and 26 and the schedule to such Act.
The Bromley Gas Act 1902.	The whole Act (so far as not hitherto repealed) except section 39.
The Bromley and Crays Gas Act 1908.	The whole Act except sections 8 (so far as it relates to enactments not repealed by this or any previous Act) 32 42 and 43.
The West Kent Gas Act 1867.	The whole Act except sections 38 and 39 and the schedule to such Act.
The West Kent Gas Order 1912.	The whole Order except the section thereof of which the marginal note is "Undertakers may construct gasworks on lands described in schedule" and the schedule to such Order.

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